9451-A

By Deputy Archivist
By W. J. Stewart Date JAN 25 1972

C.F.
Treasury

~~C O P Y~~

EXECUTIVE ORDER

MAKING CERTAIN METALLIC CADMIUM AVAILABLE FOR THE USE OF THE ARMY x W.C.

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x289

WHEREAS the Procurement Division of the Treasury Department has acquired by purchase, pursuant to the act of June 7, 1939, 53 Stat. 811, stocks of metallic cadmium; and

WHEREAS the Chairman of the War Production Board has reported to me that there is need for 400,000 pounds of metallic cadmium by the Army:

NOW, THEREFORE, by virtue of the authority vested in me by section 4 of the said act of June 7, 1939, it is ordered as follows:

1. The Procurement Division of the Treasury Department is hereby authorized and directed to make available for the use of the Army, upon such terms of sale and delivery as may be mutually agreed upon between the Procurement Division and the Army, 400,000 pounds of metallic cadmium acquired by the Procurement Division pursuant to the said act of June 7, 1939.

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2. This order is confidential and shall not be filed in the Division of the Federal Register, the National Archives, or published in the Federal Register or made public in any manner until expressly authorized by or at the direction of the Secretary of War.

FRANKLIN D. ROOSEVELT

THE WHITE HOUSE

June 21, 1944.

original of this order sent to Hon. F J Bailey
Bureau of the Budget 6/22/44 (3155)
(3) Encls.

Office of the Attorney General
Washington, D.C.

June 16, 1944

[redacted]

The President,

The White House.

My dear Mr. President:

I transmit a revised draft of a proposed Executive order entitled "Making Certain Metallic Cadmium Available for the Use of the Army."

The proposed order is presented by the Chairman of the War Production Board with the concurrence of the Army and Navy Munitions Board and the Procurement Division of the Treasury Department. It has been considerably revised in this Department in the interest of form and language but its purpose has not been changed.

The revised draft of the order has my approval as to form and legality.

Sincerely yours,

Francis Biddle

Attorney General.

Declassified per letter from S.A. Andretta 12-13-61

June 16, 1944

~~SECRET~~

The President,

The White House.

My dear Mr. President:

I transmit a revised draft of a proposed Executive order entitled "Making Certain Metallic Cadmium Available for the Use of the Army."

The proposed order is presented by the Chairman of the War Production Board with the concurrence of the Army and Navy Munitions Board and the Procurement Division of the Treasury Department. It has been considerably revised in this Department in the interest of form and language but its purpose has not been changed.

The revised draft of the order has my approval as to form and legality.

Sincerely yours,

Attorney General.

Declassified per letter of S.A. Andretta, 12-13-61

JUN 14 1944 [redacted]

My dear Mr. Attorney General:

Herewith is the draft, as revised as to form in this office, of a proposed Executive Order prepared by the War Production Board and forwarded to this office by the Procurement Division of the Treasury Department, authorizing and directing the Procurement Division of the Treasury Department, when directed by the Army, to make use of 400,000 pounds of metallic cadmium acquired by it pursuant to the Act of June 7, 1939, 53 Stat. 811, by transferring the same to the use of the Army upon such terms of sale and delivery as may be mutually agreed upon between the Procurement Division and the Army.

The Chairman of the War Production Board states that the Army decided recently to convert the metallic cadmium acquired by the Procurement Division under the Act of June 7, 1939, into the finished product, stockpiling the finished product rather than the material itself, and that the proposal is concurred in by the Army and Navy Munitions Board. The Procurement Division states that it has no objection to the issuance of the proposed order.

As you will note, the proposed order and accompanying papers are marked "Secret". The Army and Navy Munitions Board has informally advised this office that it would prefer that the order not be published or otherwise made public. The following paragraph has accordingly been added to the revised form of order: "This order is confidential and shall not be published in the Federal Register or made public in any manner except upon prior authorization by or at the direction of the Secretary of War."

The proposed order, as revised, has the approval of the Director of the Bureau of the Budget.

Very truly yours,

(Signed) W.J. BAILEY

Assistant Director,
Legislative Reference.

The Honorable,

The Attorney General.

Enclosures.

REGRADED
UNCLASSIFIED

HHT/rd 6/13/44

TREASURY DEPARTMENT

PROCUREMENT DIVISION

OFFICE OF THE DIRECTOR

WASHINGTON 25

June 8, 1944

Mr. Harold D. Smith
Director, Bureau of the Budget
Room 252, State Department Bldg.
Washington, D. C.

Dear Sir:

Subject: Release of Metallic Cadmium

Enclosed you will find a letter dated June 5, 1944 from Mr. Donald M. Nelson, Chairman of the War Production Board, addressed to the President, together with a proposed Executive Order covering the release of 400,000 pounds of metallic cadmium purchased under Public Act 117, 76th Congress, which is now in the Treasury Department, Procurement Division Stock Pile. The Treasury Department, Procurement Division has no objection to the issuance of the enclosed Executive Order.

Very truly yours,

A. J. Walsh
Deputy Director of Procurement

Enclosures

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WAR PRODUCTION BOARD
WASHINGTON, D. C.

OFFICE OF
DONALD M. NELSON
CHAIRMAN

June 5, 1944

[redacted]

My dear Mr. President:

This letter is occasioned by the necessity of making available to the Army for processing in the third quarter of 1944, 400,000 pounds of metallic cadmium in order to fulfill partially a portion of the Army's requirements for this material for the year 1944.

At the request of the Army and Navy Munitions Board, the War Production Board recommended on October 1, 1943, that 400,000 pounds of metallic cadmium be made available to meet an important requirement, then contingent, of the Chemical Warfare Branch of the Army. The reason for this request was the necessity of having a certain amount of this material available for processing into the finished product on short notice should the need for using the finished product materialize. Accordingly, 400,000 pounds of this material was purchased under Public Law No. 117 and is now stored in an Army arsenal.

The Army decided recently to convert during 1944 metallic cadmium into the finished product, stockpiling the finished product rather than the material itself. To carry out in part this decision, the War Production Board has now recommended and the Army and Navy Munitions Board has agreed that the 400,000 pounds of metallic cadmium purchased under Public Law No. 117 be released so as to be made available for processing in the third quarter of 1944. It is proposed, therefore, that the necessary action be taken to obtain the release to the use of the Army of the 400,000 pounds of this material now held in Treasury Procurement stockpile. Arrangements satisfactory to the Procurement Division of the Treasury Department will be made to reimburse it for the cost of the released material.

The Army and Navy Munitions Board has concurred in this proposal.

I enclose a draft of an Executive Order which, I believe, will effect the desired action.

Respectfully,

Donald M. Nelson

x 4735

FOR VICTORY BUY UNITED STATES WAR BONDS AND STAMPS

The President
The White House

Enclosure x6. F. War Production Board

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